

Complaints procedure

How to raise a complaint or give general feedback about the service HMCTS provides.



HM Courts &
Tribunals Service

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Make a complaint

If you're unhappy with our service

You might want to make a complaint. Our complaint process looks at how your case was handled by our staff. We're not able to change the decision in your case or investigate how a judge or magistrate acted towards you.

To complain about our service:

- [complete our online complaints form](https://hmcts-complaint-form-eng.form.service.justice.gov.uk)
(<https://hmcts-complaint-form-eng.form.service.justice.gov.uk>)
- speak to a member of staff in our buildings and we'll record your feedback

- contact our courts or tribunals by email, phone or in writing

We aim to respond within 10 working days.

Review

If you're not happy with the reply to your complaint, you can ask a senior manager at the office to carry out a review. You should explain why you're not satisfied. The manager will aim to respond to you within 10 working days.

Appeal

If you're not satisfied with the senior manager's review of your complaint, you can appeal to the User Investigations Team. The manager who reviewed your complaint will give you their contact details. The User Investigations Team will take a fresh look at the way your complaint has been handled. They will aim to respond to you within 15 working days.

If you remain unsatisfied at the end of the HMCTS complaints process, you can also ask your member of Parliament to refer your case to the Parliamentary and Health Service Ombudsman (<http://www.ombudsman.org.uk/>). However, if you're a victim of crime as defined by the Code of Practice for Victims of Crime in England and Wales (<https://www.gov.uk/government/publications/the-code-of-practice-for-victims-of-crime>) then you can escalate your complaint directly to the PHSO.

If you're unhappy with how a judge or a magistrate has acted

Judges, magistrates and tribunal members do not work for HMCTS. We cannot investigate complaints about their behaviour or take any action.

If you're unhappy with the way a judge, tribunal judge or member has behaved, you can complain through the Judicial Conduct Investigations Office webpage

(<https://www.complaints.judicialconduct.gov.uk/makeacomplaint/>).

If you're unhappy with the way a magistrate behaved you can make a complaint to the local Conduct Advisory Committee
(<https://www.complaints.judicialconduct.gov.uk/magistratescomplaints/>).

Neither body will accept complaints about a judge or magistrate's decision or the way they've managed a case.

If you're unhappy with the result of your case

Judges, magistrates and tribunal members do not work for us. We cannot investigate complaints that challenge a decision they've made.

If you're unhappy with the result of your case, you can appeal the decision, for example if you think the decision was incorrect. You might want to seek legal advice if you decide to do this. You can find out how to appeal a decision with the judiciary on GOV.UK or through your legal representative.

Give feedback

To tell us how we can improve:

- complete our online feedback form (<https://hmcts-givefeedback-form-eng.form.service.justice.gov.uk/>)
- speak to a member of staff in our buildings and we'll record your feedback
- contact our courts or tribunals
(<https://www.gov.uk/find-court-tribunal>) by email, phone or in writing

We'll not be able to write back to you, but we want to hear if we can improve.

Say thank you

To tell us we've done something well:

- complete our online thank you form (<https://hmcts-saythankyou-form-eng.form.service.justice.gov.uk/>)
- speak to a member of staff in our buildings and we'll record your feedback
- contact our courts or tribunals (<https://www.gov.uk/find-court-tribunal>) directly by email, phone or in writing

We'll not write back to you, but we want to know if we've done something well. We can make sure it keeps happening and learn from your feedback.



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